

**NATIONAL EDUCATIONAL ASSESSMENT AND
EXAMINATIONS AGENCY (NEAEA)**

**NATIONAL EXIT EXAMINATION FOR
LL.B PROGRAMME STUDENTS OF ETHIOPIAN
LAW SCHOOLS**

ACADEMIC YEAR 2018/2019

24 April 2019

Time allowed: 3:00 Hours

PART III: PROCEDURAL AND RELATED LAWS

GENERAL INSTRUCTIONS

1. ATTEMPT EACH SECTION ON THE BASIS OF SPECIFIC INSTRUCTION INDICATED IN EACH SECTION.
2. THIS A CLOSED BOOK EXAM FOR ALL MATERIALS EXCEPT CLEAN COPIES OF THE CIVIL PROCEDURE CODE, THE CRIMINAL PROCEDURE CODE AND THE FEDERAL COURTS ESTABLISHMENT PROCLAMATION WHICH CANNOT BE LENT TO OR BORROWED FROM OTHER STUDENTS.
3. SUPPORT YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS WHEREVER APPROPRIATE.
4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE LEGIBLY.
7. DO NOT BRING YOUR MOBILE PHONE IN THE EXAM HALL.

PLEASE DO NOT TURN THIS PAGE UNTIL YOU ARE TOLD TO DO SO.

SECTION I: MULTIPLE CHOICE (30 %)

CHOOSE THE BEST ANSWER AND WRITE THE LETTER OF YOUR CHOICE ON A SEPARATE ANSWER SHEET APPENDED TO THIS EXAM BOOKLET.

1. One of the following grounds of preliminary objection precludes the party from institution of fresh suit with respect to the same cause of action:
 - A. The pendency of the suit.
 - B. The subject matter of the suit being *res judicata*.
 - C. Material jurisdiction of the suit being out of the power of the court.
 - D. The court lacks local jurisdiction.
 - E. An objection made on misjoinder or nonjoinder of parties.
2. In one of the following grounds, the High Court **does NOT** order change of venue:
 - A. When it thinks that some question of law of unusual difficulty is likely to arise.
 - B. When it thinks a fair and impartial trial cannot be held in any court subordinate thereto.
 - C. When it thinks that the court adjudicating the case is unfit to entertain and provide justice.
 - D. When it thinks that it is convenient and accessible for the parties or witnesses.
 - E. When it thinks for whatever reason that it is expedient for the purpose of justice.
3. Non-appearance of both parties to the suit during first hearing entails one of the following:
 - A. Suspension of the proceeding.
 - B. Adjournment of the hearing to another date.
 - C. Striking out of the suit.
 - D. Dismissal of the suit.
 - E. Adjudicate the case *ex-parte*.
4. One of the following denotes hearing in the absence of the defendant in civil proceedings:
 - A. Default judgment.
 - B. Trial.
 - C. Hearing in absentia.
 - D. Ex-parte hearing.
 - E. Rule of estoppel.

5. One of the following is **correct** about the difference between striking out of a suit and dismissing a suit under the Civil Procedure Code:
- A. Dismissing a suit does not avoid the submission of a fresh suit.
 - B. A suit is struck out when a plaintiff fails to appear but defendant appears.
 - C. Striking out does not avoid the submission of a fresh suit only if there is good cause.
 - D. A suit is dismissed when the plaintiff fails to appear but defendant appears.
 - E. When the plaintiff fails to appear, a suit is dismissed unless admitted by the defendant.
6. A criminal procedure is **NOT** concerned with:
- A. Arrest and conviction.
 - B. Trial and appeal.
 - C. Fundamental rights of an accused person.
 - D. Fairness of the trial process.
 - E. Allocation of power among state organs.
7. The principle of equality implies:
- A. That punishment must not exceed the crime committed.
 - B. The uniform application of the law.
 - C. Separation of procedural functions.
 - D. The absence of mandatory rules in a criminal proceeding.
 - E. Recognition of nations and nationalities.
8. The applicable standard in case of arrest without a warrant is:
- A. Reasonable grounds to believe.
 - B. Reasonable suspicion.
 - C. Suspicion.
 - D. Probable cause.
 - E. Subjective belief of the arresting police officer.
9. Choose the correct statement:
- A. The right to bail is an absolute right.
 - B. Presumption of innocence cannot be derogated.
 - C. Corruption offences are non-bailable.
 - D. Terrorist offences are non-bailable.
 - E. Article 59 of the Criminal Procedure Code of Ethiopia does not give a judge the option to release a person unconditionally.

10. Which one of the following has the power to enact a criminal procedure code in Ethiopia?
- A. State legislative organ.
 - B. The federal government.
 - C. Not clearly specified in the FDRE Constitution.
 - D. Both the federal and state governments.
 - E. The House of Federation.
11. Identify the **incorrect** statement about conflict of laws:
- A. It does not solve a case in the sense that its rules do not furnish a direct substantive solution to the dispute at hand.
 - B. The application of the rules of conflicts of law (choice of law) by itself enables the court to decide on a case.
 - C. It carries the case only half way until a certain category of law is chosen in order to dispose of the case with a substantive remedy.
 - D. The functions of conflict of law rules are to choose the applicable system of law.
 - E. This discipline is not concerned with public cases like constitutional and administrative cases.
12. Choose the **wrong statement** concerning the scope of conflict of laws:
- A. Conflict of law problems arise at the international level.
 - B. Conflict of laws may arise at national level.
 - C. States in a federation consider one another as a foreign nation if conflict arises within the federation.
 - D. Inter-state conflicts of laws' principles are essentially the same as the international conflicts.
 - E. States are not regarded as separate and sovereign entity having distinct and separate legal system concerning the areas of legislative power entrusted to them.
13. Which one of the following **is NOT** the element of conflict of laws?
- A. Judicial jurisdiction.
 - B. Choice of law.
 - C. Material Jurisdiction.
 - D. Recognition and enforcement of foreign judgments.
 - E. Recognition and Enforcement of foreign arbitral awards.

14. One of the following is **NOT true** about function of conflict of laws:
- A. The desire to do justice in cases involving a foreign element.
 - B. Creating sense of justice and structuring a sufficient or genuine connection.
 - C. The local law is always the proper law that should govern the transaction at hand.
 - D. It is through the predetermined choice-of-law rules that one can reach the applicable law.
 - E. The choice-of-law rules help us settle the problem of choice between possible eligible laws.
15. Identify the **incorrect statement** about choice-influencing considerations in value oriented choice of law theory:
- A. Predictability of results.
 - B. Maintenance of inter-state and international order.
 - C. Simplification of the judicial task.
 - D. Advancement of the foreign governmental interest.
 - E. The application of the better rule of law.
16. One of the following is **NOT correct** about conflict of laws in Ethiopia:
- A. Ethiopia does not have defined rules of private international law.
 - B. Ethiopia has a well developed precedent to enable courts assume judicial jurisdiction.
 - C. A number of attempts have been made to draft the Private International law rules.
 - D. There are some insufficient provisions of judicial jurisdiction scattered in different codes designed for specific purposes.
 - E. Recourse to general jurisprudence is one of the solutions for Ethiopian courts when faced with foreign element.
17. A theory which rests on the thinking that a country has got jurisdiction on any person and property in its territory is:
- A. Territorial power theory.
 - B. Minimum contact theory.
 - C. Fairness theory.
 - D. Domicile theory.
 - E. Theory of submission.

18. According to the Federal Courts' Proclamation, in Ethiopia,
- A. the Federal High Court has first instance jurisdiction to see interstate conflict cases while the Federal Supreme Court has similar power to see international conflict cases;
 - B. the Federal Supreme Court has first instance jurisdiction to see interstate conflict cases while the Federal High Court has similar power to see international conflict cases;
 - C. Regional Supreme Courts have first instance jurisdiction to see interstate conflict matters while the Federal Supreme Court is bestowed with first instance jurisdiction to see international conflict cases;
 - D. the Federal High Court has first instance jurisdiction to see both interstate and international conflict of laws cases;
 - E. Regional High Courts have first instance jurisdiction to see both interstate and international conflict of laws matters.
19. Which of the following statements is correct regarding party autonomy?
- A. Parties enjoy unlimited freedom to choose the governing law applicable in case dispute arises in their legal relationship.
 - B. Parties enjoy, as a rule, freedom to choose the governing law applicable in case dispute arises in their legal relationship.
 - C. Parties enjoy absolute freedom to choose the governing law if the agreement is reached after dispute arises.
 - D. Parties are not usually free to choose the governing law applicable to disputes that may arise between/amongst them.
 - E. Choices of law clauses made before a dispute arises are generally more likely to be enforced than choice of law clauses made after a dispute arises.
20. Choose an **invalid** statement.
- A. In conflict of laws, public policy should be interpreted in a non-restrictive manner.
 - B. If application of a foreign law runs contrary to accepted morality and public order of a forum state, it may not be applied.
 - C. Public policy provides an exception to the normal operation of choice of law rules.
 - D. A mere difference between forum law and foreign law does not imply violation of public policy of the forum state and hence does not bar a foreign law from application.
 - E. A court that rejected the application of a foreign law on public policy grounds should either apply forum law or dismiss the case.

21. Beyond reasonable doubt standard in criminal cases, may be better explained by one of the following:
- A. It means virtually certain.
 - B. It requires absolute certainty.
 - C. It requires equal standard of proof with civil cases.
 - D. It means proof with reasonable doubt.
 - E. It is applicable only for constitutional litigations.
22. One of the following methods of evidence gathering approach is different from the others.
- A. Trial by compurgation.
 - B. Committing ordeal.
 - C. Confession of suspect.
 - D. Test of DNA.
 - E. Testimony supported by oath.
23. One of the following is NOT necessarily a subject matter for law of evidence:
- A. Weight of evidence.
 - B. Admissibility of testimony.
 - C. Jurisdiction of courts.
 - D. Locating burden of proof.
 - E. Standard of proof.
24. One of the following is true about inquisitorial system of litigation:
- A. It is mainly practised in common law legal systems.
 - B. In such litigation, courts have a minimum role.
 - C. Ethiopian courts fall under this form of litigation.
 - D. This system of litigation empowers courts for further inquiry of evidence.
 - E. This form of litigation bars courts from examining witness.
25. One of the following is not an essential rationale for exclusion of hearsay evidence:
- A. Risk of misperception.
 - B. Faulty memory.
 - C. Possibility of ambiguity.
 - D. Relevance fact with fact in issue.
 - E. Existence of spontaneity.

26. An exception to exclusionary rule of hearsay evidence is:
- A. Faulty memory of witness.
 - B. Error in narration of fact.
 - C. Dying declaration.
 - D. The risk of insincerity.
 - E. Real perception.
27. Which one of the following is mandatory to be considered by courts?
- A. All facts in litigation.
 - B. Verdicts of civil bench.
 - C. Precedent of higher courts.
 - D. Verdict of criminal bench.
 - E. Judicial notice of law.
28. Which one of the following is **not** necessarily essential in evaluating the relevant evidence of fact forming part of the same transaction?
- A. Linkage of fact with issue.
 - B. All events of fact in transaction.
 - C. Transactions during a crime scene.
 - D. Spontaneous declaration in relation to fact in issue.
 - E. Existence of consecutive transactions.
29. Credibility of witnesses may not be impeached by:
- A. Prior inconsistent statement.
 - B. Impartiality of witness.
 - C. Defective capacity to portray events.
 - D. Observable bias.
 - E. Irrational assertion.
30. One of the following forms of evidence consists of things which can convey first hand impression in relation to disputable fact:
- A. Demonstrative evidence.
 - B. Documentary evidence.
 - C. Indirect evidence.
 - D. Direct evidence.
 - E. Confession of a suspect.

SECTION II: MATCHING (10 %)

MATCH EACH ITEM UNDER COLUMN "A" WITH ITS BEST CORRESPONDING ITEM UNDER COLUMN "B"

Column A	Column B
1. Preliminary inquiry	A. 14 days
2. Amending a charge	B. offences against foreign states
3. Federal First Instance Court	C. barred by limitation
4. Federal High Court	D. offences regarding counterfeit currency
5. Federal Supreme Court	E. accused has a diplomatic immunity
6. State High Courts	F. within fifteen days
7. Charge	G. preserve the integrity and security of evidence and witness
8. Refusal to institute a proceeding	H. sit in the zonal regions of States
9. Close the police investigation file	I. containing essential errors or omissions
10. Pre-charge detention	J. offences for which a foreign ambassador is liable

SECTION III: SHORT ANSWERS (10 %)

GIVE A SHORT ANSWER TO THE FOLLOWING QUESTIONS

3.1. What is the purpose of joinder of third party? (5 %)

3.2. State the circumstances where the police can order the police investigation to be terminated. (5 %)

SECTION IV: ESSAY TYPE QUESTIONS (20 %)

WRITE SHORT ESSAY TO THE FOLLOWING QUESTIONS

4.1. One of the *raison d'être*s for Private International Law is its significance in discouraging *forum shopping*. Discuss what *forum shopping* is and how Private International Law serves as a limitation to it. (10 %)

4.2. Discuss the methods of impeaching the credibility of a witness? (10 %)

SECTION V: HYPOTHETICAL CASE PROBLEMS (30 %)
READ THE FOLLOWING HYPOTHETICAL CASE AND ANSWER THE QUESTIONS THAT FOLLOW. SUPPORT YOUR ANALYSIS WITH THE RELEVANT PROCEDURAL LAWS.

Belachew and Ahmedin are friends living in Addis Ababa. Belachew owns a building in Butajira. Ahmedin approached Belachew, and offered for house rent which was accepted by the latter. The contract for the house rent was signed in Addis Ababa at Arada Sub-city. They agreed that the annual rent of the building in Butajira is Birr 460,000 (Four hundred sixty thousand) and that half of which shall be paid two days after the conclusion of the contract and the remaining half to be paid 15 days before the last date of the rental period. Accordingly, the first advance payment is effected based on the contractual terms.

A few weeks after Ahmedin started the business, he realized that hotel business is not an easy task and wanted to change his business to a night club. He approached Zenebe, a well-known contractor, to make physical changes to the structures of the building. To the dismay of Ahmedin, however, this change caused some substantial damage to the building. Finally, he thought that he is not good on business, and left the building at the end of the fifth month of the contract.

Belachew filed a suit at Federal First Instance Court for the non-performance in relation to the unpaid half of the building rent as per the contract. While this suit was pending between the parties, he also instituted a claim of restitution of the building (to its initial condition) in Gurage zone, Butajira area High Court, where the building is located.

The defendant is summoned by the Gurage Zone Butajira area High Court, and he raised a preliminary objection over the suit. He invoked a preliminary objection of pendency stating that he is already sued by the plaintiff at the Federal First Instance Court, and further argued that the Court does not have jurisdiction over them because they are residents of Addis Ababa. Moreover, as an alternative pleading, the defendant requested the Court to make Zenebe a party to the suit on the ground that Zenebe is liable to the damage caused to the building because of his fault.

QUESTIONS:

- 5.1. If you were an advocate representing the plaintiff, what tenable argument/s would you raise against the preliminary objections claimed by the defendant? (15 %)
- 5.2. Assuming that the plaintiff had joined the cause of action of non-performance of the contract and restitution of the building in a single suit, what would be your ruling if you were a judge? (10 %)
- 5.3. Assuming that Zenebe is summoned to appear but failed to do so, what would be your ruling on such non-appearance? (5 %)